

**Course Code: BCC 109**  
**Course Title: Business Law**

**Marks: 100**

**Credit: 3 hours**

**(Written: 75, Internal Evaluation: 20 and Viva: 05)**

**Course Objectives:**

This course aims at improving the understanding of students in business decisions affected by legal framework of the national and international context. The course has been designed to provide specific knowledge on law of contract, Companies Act, Labor codes, Negotiable Instruments and Sale of goods.

**Course Contents:**

- 1. Introduction:** Defining and understanding law & Business Law, Society/Community and Rule of law-Commercial or Mercantile law- Limitations and Challenges of Commercial Law.
- 2. Law of Contract:** Concept of contract, objective and scope, Essential elements of Contract Classification of Contract, Offer and Acceptance ,Revocation, Void and Voidable Agreements – Free Consent – Bailment & Pledge- Law of Agency, Termination or Discharge of Contracts, Case Studies.
- 3. Law Relating to Company.**
  - i) Introduction: Definition of Company, origin of Company Law, Company Act 1994, Essential elements of company, Types of Company, How to convert Private limited company to Public Limited Company, How to convert Public Limited Company to Private limited Company.
  - ii) Formation: Who are promoters?- Stages of Company Formation, Various documents of Company, Formation, Preparing to Memorandum of Association and Articles of Association- Prospectus etc.
  - iii) Management and Administration: Directors, Managing Directors or Company Secretary – Meeting and Resolutions – Accounts and Audit.
  - iv) Winding up: Winding up of companies – compulsory winding up by the court – voluntary winding up by the members themselves and Voluntary winding up by the Creditors – voluntary winding up under the supervision of the court.
- 4. The Bangladesh Labor Act , 2006**
  - i) A brief overview of labor law & Bangladesh labor code-2006
  - ii) Health and Hygiene Worker safety – welfare – leaves & holidays.
  - iii) Law relating to Workmen's compensation act 2006.
  - iv) Trade union – CBA – ILS - Resolving industrial unrest – settlement of disputes.

5. **Law relating to Negotiable Instruments:** Definitions of Bill of Exchange (B/E), Promissory Note (P/N) and cheques – Acceptance and Negotiations. Rights and Liabilities of parties – Dishonor of Negotiable Instruments.

6. **Sale of Goods Act:** Definition & types of goods - Goods sale & Agreement to sell – Essential elements –Condition & warranty – Doctrine of Caveat Emptor - Transfer of ownership – Performance of contract of sale.

7. **Consumer Right Protection Act 2009 :** Definitions-Establishment of council-Functions of council-Duties and functions of the committees-offences and punishments etc.-Complaint and complaint's share in fine-Exemption

8. **Bangladesh Environment Conservation Act (BECA ) 1995:** Introduction to environment pollution-Salient features of Bangladesh Environment Conservation Act (BECA ) 1995

9. **Law Related to Carriage:** Carriage by Land-Carriage by Air-Carriage by Sea

**Basic Texts:**

1. Workmen's Compensation Act, 1923.
2. Bangladesh Company's Act .
3. A.K. Sen. and I.K. Mitra – Commercial law and Industrial law - World Press Ltd, Calcutta.
4. A.A. Khan – Bangladesh Labor and Industrial Law.

**Reference Books:**

1. TejpalSheth -Business law (Pearson Edition)
2. Bangladesh Labor Law (Code)- 2006
3. Dr. M. Jahir- Companies & Securities law.